

Ashok Kumar Meena S/O Shri Badriprasad ... vs The State Of Rajasthan on 8 April, 2021

Author: Ashok Kumar Gaur

Bench: Ashok Kumar Gaur

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Writ Petition No. 4625/2021

Ashok Kumar Meena S/o Shri Badriprasad Meena, Aged About 28
Years, R/o Village Reta, Tehsil Sikrai, District Dausa (Rajasthan).

----Petitioner

Versus

1. The State Of Rajasthan, Through Principal Secretary
Agriculture Department, Government Secretariat, Jaipur.
2. The Director, Department Of Agriculture, Government Of
Rajasthan, Agriculture Commissionerate, Jaipur.
3. The Deputy Director (Adm.), Government Of Rajasthan,
Agriculture Commissionerate, Jaipur.
4. Assistant Director Agriculture (Extension), In Front Of
Dargah Hazrat Shah, Agriculture Bhawan, Lalsot Road,
Dausa.
5. Smt. Priyanka Meena W/o Shri Ashok Kumar Meena, R/o
Village Agawali, Tehsil Sikrai, District Dausa (Rajasthan).

----Respondents

For Petitioner(s) : Mr.Umesh Vyas
For Respondent(s) :

HON'BLE MR. JUSTICE ASHOK KUMAR GAUR

Order

08/04/2021

Learned counsel for the petitioner submitted that by the impugned order dated 13th March, 2021, direction has been given to deduct half salary of the petitioner from March, 2021 onwards in order to pay the said amount to his estranged wife.

Learned counsel for the petitioner submitted that the petitioner is Assistant Agriculture Officer and he has been discharging his duties without any complaint.

(2 of 3) [CW-4625/2021] Learned counsel submitted that the petitioner and his wife are not having cordial relations and wife of the petitioner, i.e. the respondent No.5 - Smt. Priyanka Meena, made complaint to the controlling officer of the petitioner, whereby she demanded that at least, half of the salary of petitioner may be given to her as per the Circular dated 20th September, 2013 (wrongly mentioned as 20th September, 2020 in her application).

Learned counsel submitted that sub-rule VI of Rule 4 of the Rajasthan Civil Services (Conduct) Rules, 1971 (for short "Rules of 1971") specifically provides that any government servant, who without sufficient and reasonable cause, neglects, refuses to maintain his/her spouse, who is unable to maintain himself/herself, shall be liable for disciplinary action.

Learned counsel submitted that the Circular dated 20th September, 2013 also makes a reference that an enquiry will be conducted by way of disciplinary action and thereafter, direction can be given to make payment of half of the salary.

Learned counsel submitted that the Circular dated 20th September, 2013 is also in conflict with the statutory rules.

Learned counsel submitted that wife of the petitioner has not filed any application under Section 125 of Cr.P.C. or under Section 24 of Hindu Marriage Act or Section 12 of DV Act.

Learned counsel submitted that the impugned order dated 13th March, 2021 is, prima facie, contrary to the Rules of 1971.

Issue notice of the petition as well as stay application, returnable on 10th May, 2021. Notices be given 'dasti', if prayed.

Till the next date, the effect and operation of the order dated 13th March, 2021 shall remain stayed.

(3 of 3) [CW-4625/2021] However, this Court also feels that the petitioner, being husband, is required to pay some money for maintenance of his wife and as such, the petitioner is directed to pay Rs.5,000/- per month to his wife subject to final outcome of the present writ petition.

(ASHOK KUMAR GAUR),J Preeti Asopa /118 Powered by TCPDF (www.tcpdf.org)